

2026.PHHC.086657



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-32775-2026
Decided On: 04.06.2026**

MANISH KUMAR

....PETITIONER(S)

VERSUS

STATE OF HARYANA

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. DS Virk, Advocate for the petitioner

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.53 dated 21.04.2026 under Sections 115(2), 117(2), 126(2), 190, 191 (2), 351(2) (Corresponding Sections 323, 325, 341, 149, 147, 506 IPC) and later on addition of Section 109 of BNS, 2023 (corresponding Section 307 IPC) Act registered at Police Station Odhan, Sirsa, District Sirsa.

2. Contention

On behalf of the petitioner

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case, as no specific injury has been attributed to him. It is further contended that the FIR is vexatious, baseless, and self-fabricated by the complainant. Additionally, the MLR does not disclose any injury that would attract Section 109 BNS (earlier Section 307 IPC)

relating to attempt to murder. The petitioner further states that he is willing and ready to join the investigation.

Notice of motion.

On behalf of the State

On the asking of the Court, Ms. Ruchi Sekhri, Addl. AG Haryana, accepts notice on behalf of the respondent–State and vehemently opposes the prayer made by learned counsel for the petitioner. She submits that there are serious allegations against the petitioner of having participated in the incident and of having caused injuries to the injured persons. It is further submitted that the petitioner does not bear a clean antecedent, as he is also found involved in three other FIRs.

3. **Analysis**

In the present case, admittedly, no injury has been caused to any vital part of the body of the injured. The fractures referred to in the medical report, after X-ray examination, are based on the opinion of the Orthopedic doctor and have been found to be on the legs, while another injury is on the arm. Otherwise also, no specific role has been attributed to the petitioner. The petitioner has further undertaken in para 11 of the present petition that he is ready and willing to join the investigation and shall fully cooperate in its furtherance.

As far as the pendency of other cases and involvement of the petitioner therein is concerned, reliance can be placed upon the order of this Court rendered in CRM-M-25914-2022 titled as “***Baljinder Singh alias Rock vs. State of Punjab***” decided on 02.03.2023, wherein, while referring Article 21 of the Constitution of India, this Court has held that no doubt, at the time of granting bail, the criminal antecedents of the petitioner are to be looked into but

at the same time it is equally true that the appreciation of evidence during the course of trial has to be looked into with reference to the evidence in that case alone and not with respect to the evidence in the other pending cases. In such eventuality, strict adherence to the rule of denial of bail on account of pendency of other cases/convictions in all probability would lend the petitioner in a situation of denial the concession of bail.

In the light of above, this Court has no reason to decline the present petition.

4. **Relief:-**

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

04.06.2026
NainaRajput

<i>Whether speaking/reasoned</i>	<i>:Yes/No</i>
<i>Whether reportable</i>	<i>:Yes/No</i>